

Ranjeet Singh v. State of U.P. and 2 Others

Allahabad High Court · Division Bench · 13 December 2022 · Writ - C No. 27829 of 2022 · **Writ petition disposed of; petitioner to file a fresh clause 6.5 objection before the Executive Engineer, Vidyut Vitran Khand, Kannauj within two weeks, to be decided preferably within four weeks; no coercive measure for two months or until that decision, whichever is earlier**

HEADNOTE

A domestic consumer challenged enhancement of the sanctioned load on his connection from 1 KV to 3 KV, said to have been made by the licensee of its own and learnt of on 03.02.2020, and the financial burden that followed. He said approaches to the Executive Engineer for correction had not been considered. The High Court did not decide whether the Electricity Act, 2003 authorises such an increase from consumption, or whether notice and opportunity were required. It held that the dispute — computation of the electricity bill and increase of load without notice or opportunity — is to be raised by a fresh application or objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, Vidyut Vitran Khand, Kannauj. The writ was disposed of with a direction to file that objection, with all grievances and a copy of the order, within two weeks. If filed in time, the Executive Engineer must decide it expeditiously in accordance with law, dealing with every point of objection, preferably within four weeks of receipt. No coercive measure is to be taken for two months or until that decision, whichever is earlier. If the objection is not filed in time, the respondents may proceed in accordance with law.

FACTUAL SUMMARY

Ranjeet Singh, holder of a domestic electricity connection, filed Writ-C No. 27829 of 2022 against the State of U.P. and two others. He was aggrieved by enhancement of the sanctioned load from 1 KV to 3 KV, which he said the respondent Nigam had made of its own. He received information of the increase on 03.02.2020 and had since approached the Executive Engineer for correction of the load. That request, he said, had not been considered, and the change had placed a financial burden on him.

On 11.10.2022 the Division Bench asked the Nigam's counsel whether the Electricity Act, 2003 enables the competent authority to increase load on its own from the consumer's consumption, and granted two weeks to place the basis of the enhancement and the provision relied on. The matter was thereafter listed on 10.11.2022, 18.11.2022 and 03.12.2022. On the last two of those dates no one appeared for the petitioner, and written instructions for the Nigam were still to be filed. The petition came up for disposal on 13.12.2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Unilateral domestic load enhancement and bill computation — fresh objection under clause 6.5; writ not decided on merits

QUESTION

Where a domestic consumer challenges a unilateral enhancement of sanctioned load and the computation of the bill, will the writ court decide those questions or send him to clause 6.5?

HOLDING

The writ court will not decide them. The remedy is a fresh application or objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, Vidyut Vitran Khand, Kannauj. The petitioner is to file it within two weeks, raising all grievances and annexing a copy of the order. If filed in time, the Executive Engineer must decide it expeditiously in accordance with law, dealing with every point of objection, preferably within four weeks of receipt. No coercive measure is to be taken for two months or until that decision, whichever is earlier. If the objection is not filed in time, the respondents may proceed in accordance with law. ¶ 2-7

QUALIFIER

The direction does not decide whether the enhancement from 1 KV to 3 KV, or the bill, is lawful. Protection from coercive action is conditional on a timely objection and ends at two months or at the Executive

Engineer's decision, whichever is earlier. Earlier approaches to the Executive Engineer were not treated as a pending clause 6.5 representation.

FLAG Six-date unnumbered order-sheet. Paragraph pins are of the 13.12.2022 disposal only (Sunita Agarwal and Ajit Singh, JJ.): 1 appearance; 2 dispute (bill computation and load increase without notice or opportunity); 3 remedy is a fresh clause 6.5 objection before the Executive Engineer, Vidyut Vitran Khand, Kannauj; 4 writ disposed, file within two weeks with a copy of the order; 5 decide expeditiously, all points, preferably within four weeks of receipt; 6 no coercive measure for two months or until the decision, whichever is earlier; 7 default leaves the respondents free to proceed in accordance with law. Listing orders: 20.9.2022 (service), 11.10.2022 (instructions on any Electricity Act, 2003 basis for enhancing load from 1 KV to 3 KV, information of which was received on 03.02.2020; Sunita Agarwal and Vipin Chandra Dixit, JJ.), 10.11.2022, 18.11.2022 and 3.12.2022 (petitioner unrepresented on the last two; written instructions still due). The Court cited Clause 6.5 generally, not a sub-clause. Catalog hits on 6.5(a), 6.5(b), 6.5(b)(ii), 6.5.14, 6.5B and 16.5 are not in the order. Load is stated as '1KV' and '3KV'. Counsel's name is spelled Chaurasiya, Chaurasia and Chaurasisa. No precedent is cited.

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ challenging computation of the domestic bill and enhancement of load from 1 KV to 3 KV without notice was disposed of by requiring a fresh clause 6.5 objection, without a decision on the enhancement or the bill. ¶ 3-4

clause-6.5-representation-executive-engineer The fresh application or objection under clause 6.5 is to be filed within two weeks before respondent no. 2, the Executive Engineer, Vidyut Vitran Khand, Kannauj, with a copy of the order, and decided by him. ¶ 3-5

billing-dispute-question-of-fact-executive-engineer-clause-6.5 Bill computation and the increase of load without notice or opportunity were treated together as the dispute for the Executive Engineer under clause 6.5, to be decided in accordance with law after dealing with every point of objection. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY ACT, 2003 AUTHORISES THE LICENSEE TO ENHANCE A DOMESTIC CONSUMER'S SANCTIONED LOAD ON ITS OWN ON THE BASIS OF CONSUMPTION

On 11.10.2022 the Court asked for the legal basis of the enhancement from 1 KV to 3 KV and granted two weeks for instructions. The 13.12.2022 disposal did not answer that question.

NOT DECIDED — CORRECTNESS OF THE BILL AND OF THE LOAD ENHANCEMENT FROM 1 KV TO 3 KV, INCLUDING WHETHER NOTICE AND OPPORTUNITY WERE IN FACT DENIED

Recorded as the dispute and as the petitioner's grievance, and left to the Executive Engineer. ¶ 2